

RECIPROCAL ACCESS AND PARKING EASEMENT AND SERVITUDE AGREEMENT

THIS RECIPROCAL ACCESS AND PARKING EASEMENT AND SERVITUDE AGREEMENT (the "**Agreement**"), is made and entered into as of the 30th day of December, 2004, (the "**Effective Date**"), by and between **BELLE REALTY OF LAFAYETTE, L.L.C.**, a Louisiana limited liability company ("**Belle**"), and **WHITNEY NATIONAL BANK**, a national banking association ("**Whitney**").

RECITALS

Belle is the owner of certain property known as "On The Boulevard Shopping Center" located in Lafayette Parish, Louisiana, said property being more particularly described in **Exhibit A** attached hereto and made a part hereof (the "**Belle Property**").

Whitney is the owner of that certain property located in Lafayette Parish, Louisiana, said property being more fully described in **Exhibit B** attached hereto and made a part hereof (the "**Whitney Property**"). Said property bears a municipal address of 3600 Johnston Street, Lafayette, Louisiana, and is known as the Johnston Street Branch.

The parties desire that Whitney grant a non-exclusive easement and servitude to Belle over certain portions of the Whitney Property, and that Belle grant a non-exclusive easement and servitude to Whitney over certain portions of the Belle Property, all as more particularly described below.

Belle and Whitney are parties to a Cross Servitude Agreement and Counter Letter dated March 16, 2000 (collectively, the "Original Servitude Agreement"), The Cross Servitude Agreement being recorded under Entry Number 00-013429, of the records of Lafayette Parish, Louisiana, copies of which are attached hereto as **Exhibit C**.

The parties desire to terminate the Original Servitude Agreement and enter into this Agreement to clarify certain terms, conditions, rights, and obligations of the parties hereto.

Agreements.

NOW, THEREFORE, in consideration of the mutual agreements contained herein, Belle and Whitney each agree and covenant, as follows:

1. Grant of Easement to Belle. Whitney does hereby grant and convey to Belle, its successors and assigns, and Belle's tenants, lessees, customers, guests, employees and invitees, a non-exclusive easement and servitude over, upon and across the Whitney Property more particularly described in **Exhibit B-1** as thirteen (13) Whitney parking spaces being further identified with "X's" as shown on the legend on **Exhibit B-1** and outlined in red on **Exhibit B-1** (the "**Whitney Servitude Area**"), for the purposes of (i) parking of light passenger vehicles, and (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking. This easement and servitude shall have a term of thirty (30) years, commencing from the Effective Date.

2. Grant of Easement to Whitney. Belle does hereby grant and convey to Whitney, its successors and assigns (except as provided hereinafter), and Whitney's tenants, lessees, customers, guests, employees and invitees, a non-exclusive easement and servitude over, upon and across those portions of the Belle Property identified as Right of Passage (shown with slanted line "///") and Belle Parking Spaces (shown with straight lines "≡") and shaded in yellow on **Exhibit A-1** (collectively the "**Belle Servitude Area**"), for the purposes of (i) parking of light passenger vehicles in the area designated as "Belle Parking Spaces", (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking, and (iii) ingress and egress for such vehicle and pedestrian passage to and from Johnston Street, Arnould Boulevard and Marie Antoinette Street, in the area designated as "Right of Passage". This easement and servitude shall have a term of thirty (30) years, commencing from the Effective Date, with the exception that the servitude and easement granted herein by Belle to Whitney, referenced herein as the Belle Servitude Area, may be cancelled by Belle in the event of the occurrence of either of the following: (I) a change in the use (bank branch) of the Whitney Property or (ii) the sale of the Whitney Property (all or a portion) by Whitney. In the event of either of the foregoing, Belle shall have the right to terminate and cancel the servitude and easement granted herein by delivering written notice of cancellation to Whitney.

3. Existing Rights. The easements and servitudes granted herein are subject to all leases, easements, servitudes and other rights affecting the Whitney Servitude Area or the Belle Servitude Area of record in the office of the Clerk of Court for Lafayette Parish, Louisiana.

4. Non-Exclusive. The parties acknowledge that the easements and servitudes granted herein are non-exclusive. Without limiting the generality of the foregoing, the parties acknowledge that each party, and each party's respective successors, assigns, tenants, lessees, customers, guests, employees and invitees shall continue to have the right to use such party's respective property and the easement area(s) located thereon.

5. Maintenance of Easement Areas. Each party agrees to keep its respective easement area(s) free from obstruction, trash and debris. Upon the terms and conditions set forth in Section 11, the parties hereby further agree to share equally (50/50) in the maintenance expenses (repairing, cleaning, and maintaining property and liability insurance) associated with the Right of Passage Area identified on **Exhibit A-1**.

6. Enforcement. Either party may enforce the terms of this Agreement by action in the nature of specific performance, injunctive relief, or damages. In the event of the failure of any party to abide by the terms and provisions of this Agreement and, in the event the other party is required to enforce its rights under this Agreement, then the successful party shall be entitled to all reasonable attorney fees and court costs in connection therewith.

7. Insurance. Each party shall maintain comprehensive general liability insurance, insuring against damage to person and property, on its respective property; and, each party shall name the other party as an additional insured on such policy(ies) of insurance. Each party shall provide the other with certificates of insurance from time to time evidencing such coverage.

8. Notices. All notices to be given pursuant to this Agreement shall be in writing and shall be deemed given (a) when delivered in person, as long as a written receipt is executed by the recipient or a representative of the recipient, or (b) when received if given by nationally recognized overnight courier service, or (c) sent by being deposited in the United States mail, postage prepaid, registered or certified mail, return receipt requested, addressed to the applicable party as follows:

If to Whitney:

Whitney National Bank
Attn: Michael Pou
Property Management Department
228 St. Charles Ave., Ste. 328B
New Orleans, LA 70130

If to Belle:

Belle Realty of Lafayette, L.L.C.
Attn: Edward E. Abdalla, IV
101 Arnould Boulevard
Lafayette, Louisiana 70506

Reciprocal Access and Parking Easement
and Servitude Agreement

With a copy to:

Richard L. Becker, Esq. or Jeremy A. Hebert, Esq.
Becker & Associates
910 Harding Street
Lafayette, Louisiana 70503

9. Headings. Headings in this Agreement are for convenience only and shall not be used to interpret or construe its provisions.

10. Indemnity. Belle shall not be liable to Whitney or any person whomsoever, for any injury to person or damage to property on or about the Belle Servitude Area, caused by the use of the Belle Servitude Area by Whitney, its successors or assigns or Whitney employees, agents, guests, patrons, or invitees, or by any other person entering upon the Belle Servitude Area under the expressed or implied invitation of Whitney, and Whitney agrees to indemnify Belle and hold it harmless from any lien, liability, cause of action, loss, claim, damage, costs, or expense, including attorney fees and court costs, suffered or incurred by Belle by reason of any such damage or injury by any such person or property. Whitney shall not be liable to Belle or any person whomsoever, for any injury to person or damage to property on or about the Whitney Servitude Area, caused by the use of the Whitney Servitude Area by Belle, its successors or assigns or Belle employees, agents, guests, patrons, or invitees, or by any other person entering upon the Whitney Servitude Area under the expressed or implied invitation of Belle, and Belle agrees to indemnify Whitney and hold it harmless from any lien, liability, cause of action, loss, claim, damage, costs, or expense, including attorney fees and court costs, suffered or incurred by Whitney by reason of any such damage or injury by any such person or property.

11. Repair. All maintenance or repair work to be performed in the Belle Servitude Area described in this Agreement shall be performed "only" by duly licensed (in Louisiana) contractors to be chosen by Belle. Prior to the commencement of any such maintenance or repair work, Whitney shall be provided by Belle with copies of the estimates of the costs and detailed schedules of the scopes of work ("Repair Work Cost"), for all such repair or maintenance work to be performed in the Belle Servitude Area, which detailed schedules of the scopes of work shall also include when and where the work will be performed, so that Whitney can make any necessary special arrangements for ingress or egress of its customers and employees. The parties further agree that any work to be performed in the Belle Servitude Area pursuant to this Agreement shall not be commenced prior to Whitney's written pre-approval of its

share of the Repair Work Cost. Whitney shall advise Belle of whether it approves of the Repair Work Cost within five (5) days of receipt of same. In the event Whitney does not respond to Belle regarding the Repair Work Cost within said five (5) days, said lack of response shall be deemed acceptance and approval by Whitney of the Repair Work Cost.

In the event Whitney responds within said five (5) days and does not approve of the Repair Work Cost, the following process shall be utilized by the parties for purposes of determining the Repair Work Cost. Whitney shall deliver to Belle specific written reasons for its non-approval including a detailed statement of its objections ("Objection Letter") and Belle shall within five (5) days after receipt of the Objection Letter resubmit the proposal in a manner that responds to the Objection Letter. Whitney shall within five (5) days of its receipt of the response letter notify Belle of its approval or disapproval of the terms of the response letter. If Whitney continues to disapprove then the following procedure shall be undertaken by the parties:

- a. Whitney shall appoint a duly licensed contractor to render a second estimate of the Repair Work Cost, as set forth above. If the two (2) estimates provided by Belle's and Whitney's duly licensed contractors are within ten percent (10%) of each other, Belle's contractor's Repair Work Cost shall be used and shared equally between the Parties. If the two (2) estimates are different by a factor of greater than ten percent (10%) from a cost perspective, then the two (2) contractors previously appointed by Belle and Whitney shall appoint a third duly licensed contractor who shall determine the Repair Work Cost, as set forth above. Each Party, if applicable and necessary, shall pay the fees and other costs of the contractors appointed by that Party to render said estimates, and the fees and other costs of the third contractor, if any, shall be shared equally by both Parties. Each contractor shall be required to render its estimate within fifteen (15) days of his/her respective appointments.
- b. The Repair Work Cost to be shared equally by the Parties shall be the estimate provided by the third contractor; provided, however, if the third estimate is higher than the first two estimates, the lower of the first two estimates shall govern and be deemed to be the Repair Work Cost; and, provided, further, the lowest of the three estimates shall govern and shall be deemed to be the Repair Work Cost.

All work shall be done in a manner that does not prevent or

unreasonably interfere with the use of the Belle Property and/or the Whitney Property, and in no event shall such work block all vehicular and pedestrian ingress and egress routes to the respective properties.

Upon the completion of the work, Belle shall deliver to Whitney a written invoice for the cost of the work. Whitney shall remit to Belle, within ten (10) days of the date of the written invoice from Belle, the amount equal to Whitney's share (one-half of the contractor's invoice amount) of the invoice.

12. Binding Effect; Effect of Transfer of Property. Subject to and upon the terms and conditions set forth in Paragraphs 1, 2 and 11, this Agreement creates covenants running with the land and shall be binding upon and shall inure to the benefit of the parties' successors and assigns. Each property owner is only liable for maintenance, repair, indemnity, and other obligations imposed by this Agreement that accrue during its ownership, but the transfer of each party's respective property(ies) does not relieve the transferor from obligations that accrued during its ownership. References to the owner of the property refers to the owner at the time of reference (synonymous with "the owner from time to time").

13. Equal Construction. The terms of the Agreement shall not be construed in favor of or against any party.

14. Severability. If any provision of the Agreement—or the application thereof to any person or circumstance—is invalid or unenforceable to any extent (including with reference to time and/or geographical scope), the remainder of the Agreement and the application of such provision to other persons or circumstances shall not be affected thereby and shall be enforceable to the greatest extent permitted by law, unless such partial enforcement would be inequitable under the circumstances (in which case the parties' rights shall be equitably adjusted).

15. Entire Agreement. The Agreement constitutes the parties' entire integrated agreement with respect to the subject matter described herein, and there are no other agreements regarding that subject. The Agreement replaces and supersedes all prior written, oral, and implied agreements and understandings by and among the parties or any of them regarding that subject matter, as well as any related written, oral, or implied representations, warranties, and covenants, including but not limited to the Original Servitude Agreement attached hereto as Exhibit C, which Original Servitude Agreement shall terminate, without any further action by either party thereto, upon recordation of

this Agreement in the records of the Clerk of Court of Lafayette Parish, Louisiana.

16. Written Amendments. The Agreement may be altered, modified, or amended solely by a written agreement signed by all of the parties.

17. Equitable Relief. A breach of the Agreement would result in irreparable injury, so if there is an actual or threatened default hereunder, the aggrieved party(ies) shall be entitled to injunctive relief and/or specific enforcement as applicable, in addition to monetary damages.

18. Counterparts. This Agreement and any subsequent amendments may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

19. Louisiana Law; Lafayette Parish Venue. The Agreement shall be construed and enforced in accordance with the laws of the State of Louisiana. Any action or proceeding arising out of or related to the Agreement shall be filed and maintained solely in either the federal district court having jurisdiction over Lafayette Parish, Louisiana matters or in the state court with jurisdiction over Lafayette Parish, Louisiana matters. The parties waive the defense of *forum non conveniens* (inconvenient forum).

20. Further Assurances. The parties promptly shall execute and deliver any and all additional documents, instruments, notices, and other assurances, and shall do any and all other acts and things, reasonably necessary in connection with the performance of their respective obligations under the Agreement and to carry out the intent of the parties.

21. Section Headings. The Section titles and headings contained in the Agreement are inserted as a matter of convenience and for ease of reference only and shall be disregarded for all other purposes, including the construction or enforcement of the Agreement or any of its provisions.

22. Time of the Essence. Time is of the essence of every provision of the Agreement.

23. No Waiver. A party's failure to insist on compliance or enforcement of any provision of the Agreement shall not affect the validity or enforceability—or constitute a waiver of future enforcement—of that provision or of any other provision of the Agreement by that party or any other party.

24. Recitals, Exhibits, and Definitions Part of Agreement. All recitals, exhibits, and definitions are incorporated by reference and constitute part of the Agreement.

25. No Third-Party Beneficiaries. Except as expressly provided, there are no third-party beneficiaries of the Agreement.

26. Parties' Relationship; No Implied Agency. No partnership or other joint venture or profit-sharing arrangement is intended. No party is the agent of any other except to the extent, if any, provided herein.

27. Warranty of Authority. Each party represents and warrants that it has the capacity and authority to enter into the Agreement.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

**STATE OF LOUISIANA
PARISH OF LAFAYETTE**

THUS DONE AND PASSED, in my office at Lafayette, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after due reading of the whole.

WITNESSES:

Cathy Palmer
Printed Name: Cathy Palmer

Ruth Casey
Printed Name: Ruth Casey

**BELLE REALTY OF LAFAYETTE,
L.L.C.**, a Louisiana limited liability
company

By: Edward E. Abdalla IV
Mr. Edward E. Abdalla, IV
Managing Member

Linda G. Landry
Notary Public, in and for
Lafayette Parish, Louisiana
My commission expires: At Death

LINDA G. LANDRY
Notary I.D.# 060768
My Commission Expires At Death

Reciprocal Access and Parking Easement
and Servitude Agreement

STATE OF LOUISIANA
PARISH OF ORLEANS

THUS DONE AND PASSED, in my office at New Orleans, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after due reading of the whole.

WITNESSES:

Deborah J. Palks
Printed Name: Deborah Palks

K. Swartz Page
Printed Name: K. Swartz Page

WHITNEY NATIONAL BANK, a
national banking association

By: Michael P. Pou
Michael P. Pou
Senior Vice President

Judy R. Bennett
Notary Public, in and for
Orleans Parish, Louisiana
My commission expires: At Death

Exhibits To Reciprocal Access and Parking Easement and Servitude Agreement

Exhibit A	Belle Property
Exhibit A-1	Belle Servitude Area
Exhibit B	Whitney Property
Exhibit B-1	Whitney Servitude Area
Exhibit C	Original Servitude Agreement

EXHIBIT A
"Belle Property"

Reciprocal Access and Parking Easement
and Servitude Agreement

Page 12 of 16

EXHIBIT A

"Belle Property"

1. That certain parcel of ground with improvements being located in Section 42, Township 10 South, Range 4 East, Lafayette Parish, Louisiana, within the City limits of the City of Lafayette, Louisiana and being a portion of the formally dedicated Block I of Arnould Heights Subdivision and Block I of Arnould Heights Subdivision Extension No. 1 and being more fully described as follows, to wit:

Commencing at the Southwest right-of-way corner of the intersection of Arnould Boulevard and Patricia Street, thence South 38 degrees 32 minutes 00 seconds East a distance of 25 feet to the point of beginning.

Thence South 38 degrees 32 minutes 00 seconds East a distance of 187.98 feet; thence South 51 degrees 28 minutes 00 seconds West a distance of 181.31 feet; thence South 38 degrees 32 minutes 00 seconds East a distance of 18.89 feet; thence South 51 degrees 28 minutes 00 seconds West a distance of 118.69 feet; thence North 38 degrees 32 minutes 00 seconds West a distance of 206.87 feet; thence along a curved line to the right having a radius of 25 feet, length of 39.27 feet and a cord of North 6 degrees 28 minutes 00 seconds East a distance of 35.36 feet; thence North 51 degrees 28 minutes 00 seconds East a distance of 250 feet; thence along a curved line to the right having a radius of 25 feet, length of 39.27 feet and a cord of South 38 degrees 32 minutes 00 seconds East a distance of 35.36 feet to the point of beginning.

2. That certain parcel of ground with improvements being located in Section 42, Township 10 South, Range 4 East, Lafayette Parish, Louisiana, within the city limits of the City of Lafayette, Louisiana, and being a portion of the formally dedicated Block I of Arnould Heights Subdivision and Block I of Arnould Heights Subdivision Extension No. 1, which parcel of ground is depicted as Lot 1 and has the dimensions and boundaries as shown on Replat of Arnould Heights and Arnould Heights Extension No. 1 by Montagnet and Domingue, Inc. dated June 7, 1994, revised July 18, 1994, and recorded under File No. 95-007659.
3. That certain parcel of ground, with improvements, being shown and designated as LOT 7, BLOCK M, ARNOULD HEIGHTS SUBDIVISION, EXTENSION NO. 1, Parish of Lafayette, Louisiana. Said parcel has a frontage of 100 feet on Marie Antoinette Street by a depth between parallel lines of 150.5 feet. Said parcel is bounded northeasterly by Marie Antoinette Street, northwesterly by Patricia Street (formerly known as Rose Street), southeasterly by Lot 6, Block M, Arnould Heights Subdivision, Extension No. 1 and southwesterly by the property of Octave Pierret, heirs or assigns.

EXHIBIT A-1
"Belle Servitude Area"

Reciprocal Access and Parking Easement
and Servitude Agreement

Page 13 of 16

JOHNSTON STREET

5
C^V - R = 1872.44' line
L = 168.53'

4' Sidewalk (Existing)

ARNOULD BOULEVARD

362.14'

1111

10' Utility Easement -

Concrete Parking

Whitney Parking Spaces

Right of Passage

Belle Parking Spaces

Lot 1
130,233 ± Sq.F
2.990 ± Acres

510

EXHIBIT B

“Whitney Property”

Reciprocal Access and Parking Easement
and Servitude Agreement

Page 14 of 16

EXHIBIT B

"Whitney Property"

That certain parcel of ground, with improvements, being known and designated as a portion of Lots 1 and 2, Block 1, Arnould Heights Subdivision, Parish of Lafayette, Louisiana. Said parcel has a frontage of 100.2 feet on U. S. Highway 167 (Johnston Street) by a depth along its southwesterly line of 125 feet and a depth along its northeasterly line of 127.2 feet with a rear or northwesterly line of 180 feet. Said parcel being bounded southeasterly by the said U. S. Highway 167 (Johnston Street), northeasterly by Arnould Boulevard, northwesterly by remaining portion of Lot 2, Block 1 of said subdivision. Being a portion of the same property acquired by Act Number 556421 of the records of the Clerk of Court's Office for the Parish of Lafayette, Louisiana.

EXHIBIT B-1
“Whitney Servitude Area”

Reciprocal Access and Parking Easement
and Servitude Agreement

Page 15 of 16

"Whitney Servitude Area"

JOHNSTON STREET

Line, $R=1872.44'$
 $CV-5$
 $L=168.53'$

$R=1872.44'$
 $CV-6$

$L=32.37'$
 $R=1872.44'$

$CV-2$

$A=30.00'$

4' Sidewalk (Existing)

Whitney National Bank

10' Utility Eas
 5'X5' Guy Easement

N38°32'00"W

100.00'

94.45'

3 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

5 spaces

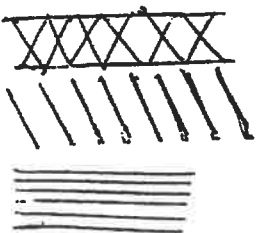
5 spaces

5 spaces

Whitney Parking Spaces

Right of Passage

Belle Parking Spaces



Lot-1
 130,233 ± Sq.F
 2.990 ± Acres

Concrete Parking

3

2

1

ARNOULD BOULEVARD

362.14'

100.00'

75.12'

69.69'

32.63'

18.67'

18.54'

41.7'

9.50'

12.86'

15.00'

15.60'

15.00'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

12.86'

EXHIBIT C
"Original Servitude Agreement"

Reciprocal Access and Parking Easement
and Servitude Agreement

Page 16 of 16

EXHIBIT C

"Original Servitude Agreement"

CROSS-SERVITUDE AGREEMENT
FILE NO.

00-013429

LOUIS J. PERRET
CLERK OF
COURT RECORDER

CLERK OF COURT
LAFAYETTE, LOUISIANA
FILED AND RECORDED

2000 APR 11 AM 11:24
STATE OF LOUISIANA

PARISH OF ORLEANS
PARISH OF LAFAYETTE

BEFORE US, the undersigned, Notaries Public, duly commissioned and qualified in and for the above parishes and state aforesaid, and in the presence of the undersigned competent witnesses:

PERSONALLY CAME AND APPEARED:

WHITNEY NATIONAL BANK, a national banking association, hereinafter referred to as "Whitney", appearing herein through its duly authorized officer; and

BELLE REALTY, L.L.C., a Louisiana limited liability company, hereinafter referred to as "Belle", appearing herein through its duly authorized representative;

Who declared that they do enter into this Cross-Servitude Agreement (the "Agreement"), and for the purposes of this Agreement the definitions of Whitney and Belle shall include their respective successors, assigns, officers, directors, shareholders, partners, members, employees, and agents; and

WHEREAS, Whitney is the owner of certain property situated in the Parish of Lafayette, State of Louisiana, bearing Municipal NO. 3600 Johnston Street, Lafayette, La., and known as the Johnston Street Branch (the "Whitney Property"), as shown on the attached Exhibit A; and

WHEREAS, Belle is the owner of certain property situated in the Parish of Lafayette, La., known as Boulevard Shopping Center and all as more fully described on the attached Exhibit B; and

WHEREAS, Whitney desires to obtain a servitude for its customers to use the driveways and parking spaces around its bank which are owned by Belle; and

WHEREAS, Belle desires permission to use the parking spaces of Whitney on the property owned by Whitney;

NOW THEREFORE, for and in consideration of \$10 and other good and valuable consideration, including without limitation, the undertaking and diligent performance to completion of the obligations hereunder, the parties agree as follows:

1. Grant. Whitney hereby grants to Belle for its guests, patrons, or invitees the non-exclusive right to the use of the 13 parking spaces on the Whitney property (shown as "Whitney Parking Spaces" on the attached Exhibit A); and Belle hereby grants to Whitney for it and its guests, patrons or invitees, the non-exclusive right and privilege of passage for purposes of ingress and egress to and from Johnston St. and Arnould Boulevard (shown as "Right of Passage" on the attached Exhibit A), as well as the non-exclusive right to the use of 13 parking spaces on the Belle property (shown as "Belle Parking Spaces" on the attached Exhibit A).
2. Maintenance. Whitney hereby agrees to share one-half of the maintenance expenses (repair, cleaning, property & liability insurance) on the passage area.
3. Insurance. Belle shall maintain liability, property damage and bodily injury insurance covering claims by reason of occurrences on or about the right of passage area and parking spaces, and Whitney shall maintain liability, property damage and bodily injury insurance covering claims by reason of occurrences on or about its property. Belle shall name Whitney National Bank as an additional insured on said policies.
4. Indemnity. Belle shall not be liable to Whitney or any person whomsoever, for any injury to person or damage to property on or about the Belle passage area and parking spaces, caused by the use of the Belle property by Whitney employees, agents, guests, patrons, or invitees, or by any other person entering upon the parking area under the express or implied invitation of Whitney, and Whitney agrees to indemnify Belle and hold it harmless from any lien, liability, cause of action, loss, claim, damage, cost, or expense, including attorney fees and court costs, suffered or incurred by Belle by reason of any such damage or injury by any person or property.
5. Sole Agreement. This Agreement and any exhibits attached hereto contains the entire Agreement of the parties hereto with respect to the subject matter hereof and can be altered, amended, or modified only by written instrument executed by all of the parties hereto.

6. The servitudes granted herein shall run with the land and the property described herein shall be sold, mortgaged, leased or otherwise conveyed subject to said servitudes as set forth herein.

THUS DONE AND SIGNED in New Orleans, Louisiana, on this the 16th day of March, 2000.

WITNESSES:

WHITNEY NATIONAL BANK

Richard J. [Signature]

BY: Michael P. Pou

Michael P. Pou

Title: Vice-President

[Signature]

[Signature]
NOTARY PUBLIC

THUS DONE AND SIGNED in Lafayette, Louisiana, on this the 7th day of April, 2000.

WITNESSES:

BELLE REALTY, L.L.C.

[Signature]

BY: Edward J. [Signature]

[Signature]

[Signature]
NOTARY PUBLIC

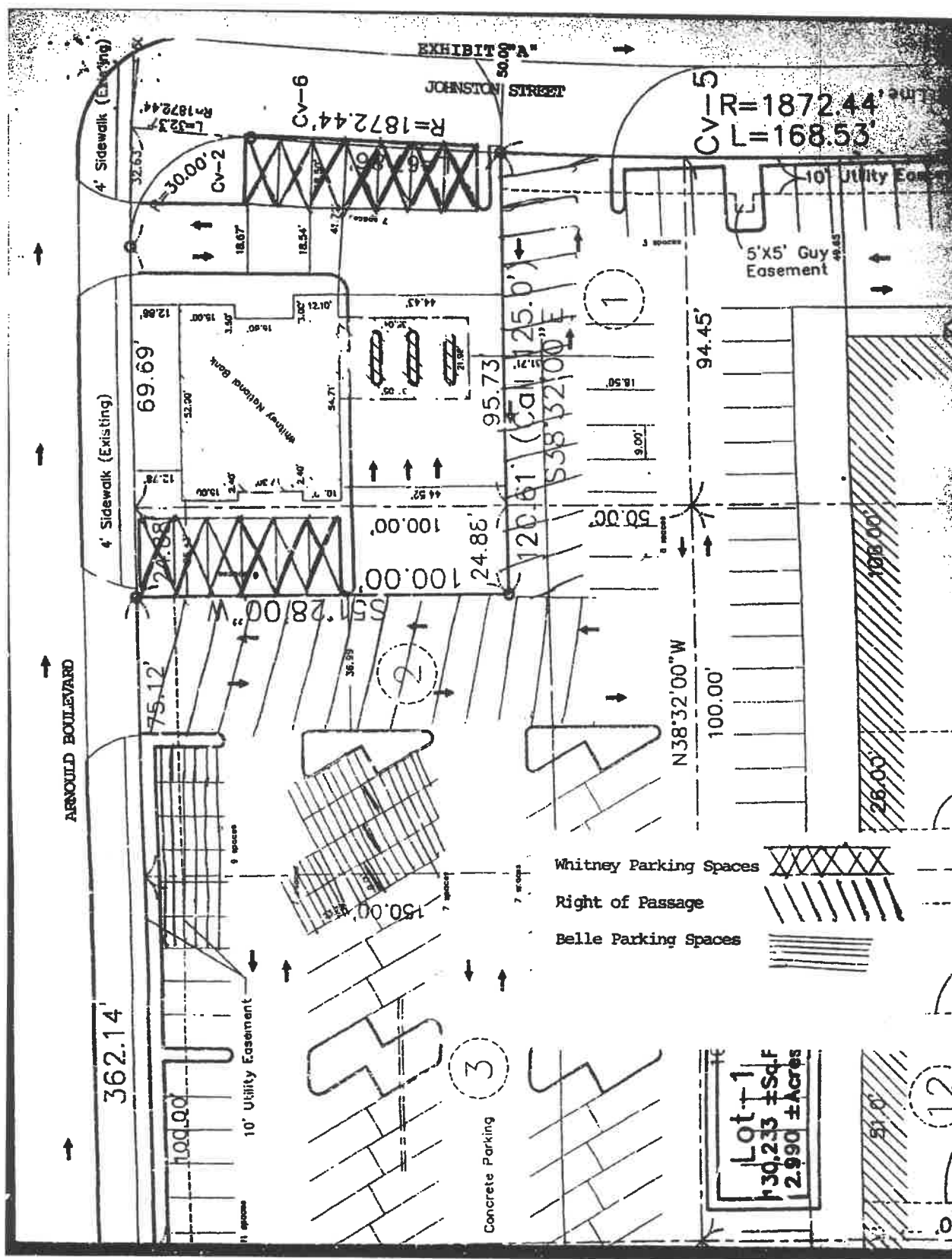


EXHIBIT "B"

1. Those four (4) certain lots or parcels of ground, with all improvements thereon, situated in the Eighth Ward of the Parish of Lafayette, Louisiana, as shown on Plat of survey of Arnould Heights Subdivision prepared by Fred L. Colomb, dated December 29, 1952 and being numbered and designated on said plat as Lots 1, 2, 3 and 4 of block 1 of Arnould Heights Subdivision; said lots are contiguous and together have a frontage on Arnould Boulevard of 402.2 feet; Lot No. 1 having a frontage of 101.2 feet by a depth along its southeastern line of 150.2 feet and a depth along its northwestern line of 150 feet; said lots numbered 2, 3 and 4 each having a frontage of 100 feet on Arnould Boulevard by depths between parallel lines of 150 feet, all as is more fully shown by reference to Plat of survey above mentioned attached to Act No. 286167, records of Clerk of Court, Lafayette Parish; said lots are further described as being bounded together northeasterly by the said Arnould Boulevard, northwesterly by Lot No. 5 of Block 1 of said subdivision, Southeasterly by U. S. Highway 167 and Southwesterly by Lots Nos. 11, 12, 13 and 14 of Block 1 of Arnould Heights Subdivision, Extension No. 1.

2. Those four (4) certain lots or parcels of ground, situated in the Eighth Ward of the Parish of Lafayette, Louisiana, together with all improvements thereon, as shown on plat of survey of Arnould Heights Subdivision prepared by Fred L. Colomb, dated December 29, 1952, which lots are designated as Lots 11, 12, 13 and 14 of Block 1 of Arnould Heights Subdivision Extension No. 1 in the Parish of Lafayette, Louisiana; said lots are contiguous and together have a frontage of 402.5 feet on Marie Antoinette Street; Lot No. 14 having a frontage of 102.5 feet by a depth along its southeastern line of 150.2 feet and a depth along its northwesterly line of 150 feet; said lots 11, 12, and 13 each having a frontage of 100 feet on Marie Antoinette Street by depths between parallel lines of 150 feet, all as is more fully shown by reference to said plat of survey above mentioned, which is attached to Act No. 286167 records of the Clerk of Court, Lafayette Parish, Louisiana; said lots are further described as being bounded northeasterly by Lots 1, 2, 3 and 4 of Arnould Heights Subdivision, northwesterly by Lot No. 10 of Block 1 of said subdivision and extension and southeasterly by U. S. Highway 167 and southwesterly by Marie Antoinette Street.